

1/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Ref.: EXP202403476

Subject: Agreement on the adoption of a provisional measure

The Spanish Agency for Data Protection (AEPD) has become aware of the future large-scale processing of personal data described below, which allegedly violates legislation on personal data protection.

I Facts

On February 28, 2024, through A61VMN 612500, the Irish authority (DPC) shared with the Data Protection Authorities information related to ***, two new functionalities for Facebook and Instagram products.

Meta Platforms Ireland Limited (hereinafter referred to as META) intends to launch two functionalities in its Instagram and Facebook products: *** (Election Day Information - EDI) *** and *** (Voter Information Unit - VIU) ***.

They indicate that they intend for all eligible voters on Instagram and Facebook in the EU, ***, to see the VIU and EDI reminders for the upcoming EU parliamentary elections.

Given the concerns raised by the data processing that these functionalities may entail, this Agency contacted the DPC on April 22 to send a questionnaire with questions regarding the data processing that META intends to carry out in connection with the launch of both functionalities. At the same time, the DPC was consulted on whether there was any ongoing procedure or if an analysis had been conducted to determine whether the new data processing is compliant with the GDPR. The DPC has not responded to such questions, but did forward the questionnaire to META and provided this AEPD with the response given by them, dated April 29, 2024.

•

Considering the above, the following considerations must be made:

FIRST: Regarding the legitimacy basis claimed by META, it should be noted that META is a private entity with a commercial purpose, and whose main activity consists of providing a social networking platform funded by the sale of advertising space, fundamentally linked to the profiling of users. However, the holding of democratic elections and the free exercise of the right to vote constitute a public interest, incompatible with the commercial nature of the company, so it cannot be considered that such interest is necessary for the performance of the contract in which the interested party is involved.

The term "necessary" used by the GDPR has, in the opinion of the CJEU, a specific and independent meaning in community legislation. According to the Court, it is a "concept...

2/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

"autonomous of Community Law" (CJEU ruling of 16/12/2008, case C-524/06, paragraph 52). On the other hand, the European Court of Human Rights (ECHR) has also provided guidelines for interpreting the concept of necessity. In paragraph 97 of its Judgment of 25/03/1983, it states that the "adjective necessary is not synonymous with 'indispensable' nor does it have the flexibility of the expressions

‘admissible,’ ‘ordinary,’ ‘useful,’ ‘reasonable,’ or ‘desirable.’”

According to the guidelines 2/2019 on the processing of personal data under paragraph 6.1.b of the GDPR in the context of making online services available to data subjects, “Article 6, paragraph 1, letter b), applies when two conditions are met: the processing in question must be objectively necessary for the performance of a contract with a data subject, or the processing must be objectively necessary to take pre-contractual measures at the request of a data subject” (paragraph 22).

It further states that “the necessity of processing is a prerequisite for both parties of Article 6, paragraph 1, letter b). Firstly, it is important to note that the concept of what is ‘necessary for the performance of the contract’ is not merely an assessment of what allows or implements the clauses of a contract. The concept of necessity has an autonomous meaning in Union Law, which must reflect the objectives of data protection legislation. Therefore, the fundamental right to privacy and the protection of personal data is also taken into account, as well as the requirements of the principles of data protection, including, in particular, the principle of fairness” (paragraph 23).

When assessing what is “necessary,” an evaluation must be made based on the objective pursued, assessing whether there are less intrusive treatments to achieve the same objective. If there are other realistic and less intrusive alternatives, the processing is not “necessary.”

Thus, one must start from the purpose that META intends with the processing of the data to evaluate the existence of “necessity.” In this case, it should be emphasized beforehand that the alleged “necessity” of such processing that META intends to carry out is incompatible with the purpose of the contract, since in no way can a public interest, such as the right to vote and the guarantee of free elections, be “necessary” for the fulfillment of a contract that has a private purpose.

It also does not justify how it intends to process exclusively data of individuals over 18 years old, when there is no reliable mechanism to determine the age of the recipients nor does it justify that interactions with the website to which they direct are processed.

Finally, the data is used for the purpose of aggregating it and transferring it in aggregated form to third parties. However, the aggregation process is not explained, nor what data is used for that aggregation, nor the level of disaggregation, so it is unknown whether the level of disaggregation allows for the identification of users, from which it can be inferred that personal data could be retained and communicated.

In light of this, according to the information provided, the ultimate purpose of META is a
3/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

the purpose of having data for the improvement of the product itself and for communicating it to third parties.

For all the above reasons, the AEPD considers that META cannot base the processing of user data it intends to carry out on Article 6.1.b) of the GDPR, nor on any other legal basis of Article 6, which would ultimately constitute a violation of the principle of lawfulness provided for in Article 5.1.a) of the GDPR.

SECOND: The intended data processing is excessive. Age data is processed when the use of a system that guarantees that only data from adults is subjected to processing is not justified.

On the other hand, the city data contained in the profile and the IP address are stored for the purpose of selecting voters, when what determines this condition is nationality, in the case of the upcoming European elections, which evidences the unnecessary nature of this processing, as it presumes that

users residing in certain cities or whose IP address is located in Europe have the right to vote, excluding other citizens residing abroad and addressing citizens from other countries who are in Europe. In short, this processing is disproportionate and excessive.

Finally, the processing of interactions is absolutely disproportionate in relation to the alleged purpose of informing about the elections.

THIRD: The principle of data retention limitation is not respected. ***, without justifying the necessity of its storage in relation to the stated purposes, which reveals an additional purpose of the processing operation.

II Justification of Urgency

The data processing planned by META constitutes an action contrary to the GDPR that would at least violate the principles of data protection of lawfulness, data minimization, and limitation of storage period, as previously stated.

It has also been indicated earlier that Meta plans to launch the VIU functionality in Spain, from May 30 to June 9, which will consist of sending notices or reminders to users ***. Therefore, the adoption of urgent measures against META cannot be postponed due to the proximity of the period in which META intends to begin the collection of personal data in Spanish territory.

If an urgent measure is not adopted, META would collect and retain personal data in violation of the provisions of the GDPR, thereby infringing the rights and freedoms of the data subjects. META has even planned to communicate the collected data in an aggregated form to third parties (which may even include individuals), without

4/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

offer no guarantee that the data made available to third parties are not personal data.

The imminent commencement of the infringing processing serves as a clear justification for the adoption of the urgent provisional measure.

III Risks to the rights of the data subjects that require protection

The collection and retention of data planned by META would pose a serious risk to the rights and freedoms of Instagram and Facebook users, who would see an increase in the volume of information that META collects about them, without any legal basis legitimizing this action by META.

The volume of information collected would allow META to create more complex, detailed, and exhaustive profiles of users, generating more intrusive processing of their rights and freedoms, such as the rights to privacy and to the protection of personal data, recognized in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.

In addition, the provision of data that could be personal to third parties would constitute a disproportionate interference in the rights and freedoms of the data subjects. The loss of confidentiality would lead to an absolute and total loss of control over one's own personal data, with the consequent high risk that they may be used by unknown controllers and for unspecified purposes.

This loss of control over one's own personal data translates into a clear violation of the right to data protection and presents clear risks to their rights and freedoms.

Therefore, in order to prevent the serious harm that could be caused to the rights and freedoms of the data subjects by the processing operations planned by META, there is an urgent need to order the adoption of a precautionary measure to prevent the realization of such harm.

The processing is carried out in the European Economic Area and substantially affects or is likely to substantially affect data subjects in more than one State, with the Irish Data Protection Authority (DPC) currently being the main supervisory authority. Therefore, the AEPD considers it urgent to adopt a precautionary measure exceptionally and within the enabling framework of Article 66.1 of the GDPR, according to which, in exceptional circumstances, when a concerned supervisory authority considers that it is urgent to intervene to protect the rights and freedoms of data subjects, it may, as an exception to the coherence mechanism provided for in Articles 63, 64, and 65, or to the procedure mentioned in Article 60, immediately adopt provisional measures intended to produce legal effects in its own territory, with a determined validity period that shall not exceed three months. The supervisory authority shall promptly communicate such measures, along with the reasons for their adoption, to the other concerned supervisory authorities, to the Committee, and to the Commission.

5/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

IV Description of the measures adopted

In view of all the above, exercising the powers conferred by Article 58 of the GDPR, and in accordance with the provisions of Article 69.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, IT IS AGREED:

- 1.- TO ORDER Meta Platforms Ireland Limited to immediately suspend the implementation of the Election Day Information Feature - EDI and Voter Information Unit - VIU in Spanish territory, as well as the collection and processing of personal data involved in the use of these features in Spanish territory.
- 2.- TO ORDER Meta Platforms Ireland Limited to communicate to this Agency the effective execution of the measure within a maximum period of 72 hours from the receipt of this Agreement.
- 3.- TO NOTIFY this Agreement to META PLATFORMS IRELAND LIMITED through FACEBOOK SPAIN, S.L.

In accordance with the provisions of Article 83.6 of the GDPR, non-compliance with the resolutions of the supervisory authority, pursuant to Article 58, paragraph 2, of the GDPR, shall be sanctioned with administrative fines of up to 20 million euros or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

During the sanctioning procedure that may be initiated, or in the resolution that agrees to archive the present preliminary investigation proceedings, a decision will be made regarding the maintenance or lifting of the effects of this provisional measure.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection